Hemant Kumar vs State Of Nct Of Delhi & Anr on 28 September, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 4974/2022
HEMANT KUMAR ..
Through: Mr. Ashwini Kumar, Mr. Arup Sinh
Ms. Arham Tanuir, Advs.
versus
STATE OF NCT OF DELHI & ANR. ..... Respondent
Through: Mr. Aashneet Singh, APP
WSI Sheetal, PS Raj Park
CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 28.09.2022 CRL.M.A. 19889/2022-EX.

Allowed subject to all just exceptions.

The application stands disposed of.

This is petition filed seeking quashing of the FIR No. 751/2020 dated 20.10.2020 registered at PS Raj Park under Section 376/313/506/406 IPC and proceedings emanating therefrom.

It is stated by Mr. Kumar, learned counsel for the petitioner that this is a case where the petitioner is a victim of the fraud.

He further states that the complainant was duly married, had 2 children and in the FIR has alleged that it was the petitioner who had promised her marriage, and on that pretext, had physically relationship with the complainant.

He states that once the complainant was married, there was no question of any inducement by the petitioner to marry her.

Issue notice. Mr. Singh, learned APP accepts notice. Let notice be issued to the respondent No.2 through all permissible modes including electronic, returnable on 12.01.2023 on the petitioner taking steps. CRL.M.A. 19888/2022-STAY This is an application filed seeking ad interim ex parte order staying proceedings in the FIR No. 751/2020 dated 20.10.2020 registered at PS Raj Park under Section 376/313/506 IPC.

I am of the view that this is a case where the complainant was already married.

The petitioner was granted bail only when the mother-in-law of the complainant identified her during bail proceedings pending before the learned Sessions Court.

It seems that in the present case, prima facie, the petitioner is the victim of the fraud perpetrated by the complainant.

For the reasons recorded above, proceedings in the FIR No. 751/2020 dated 20.10.2020 registered at PS Raj Park under Section 376/313/506 IPC are stayed till the next date of hearing.

List on 12.01.2023.

JASMEET SINGH, J SEPTEMBER 28, 2022 / (MS) Click here to check corrigendum, if any